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Distr.: General
29 May 2025

Original: English

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Human Rights Council
Working Group on Arbitrary Detention

Opinions adopted by the Working Group on Arbitrary Detention at its 102nd session, 1–10 April 2025

Opinion No. 9/2025 concerning Ji Xiaolong and Chen Pinlin (China)

1. The Working Group on Arbitrary Detention was established in resolution 1991/42 of the Commission on Human Rights. In its resolution 1997/50, the Commission extended and clarified the mandate of the Working Group. Pursuant to General Assembly resolution 60/251 and Human Rights Council decision 1/102, the Council assumed the mandate of the Commission. The Council most recently extended the mandate of the Working Group for a three-year period in its resolution 51/8.

2. In accordance with its methods of work,[1] on 25 November 2024 the Working Group transmitted to the Government of China a communication concerning Ji Xiaolong and Chen Pinlin. The Government replied to the communication on 25 November 2024. The State is not a party to the International Covenant on Civil and Political Rights.

3. The Working Group regards deprivation of liberty as arbitrary in the following cases:

(a) When it is clearly impossible to invoke any legal basis justifying the deprivation of liberty (as when a person is kept in detention after the completion of his or her sentence or despite an amnesty law applicable to him or her) (category I);

(b) When the deprivation of liberty results from the exercise of the rights or freedoms guaranteed by articles 7, 13, 14, 18, 19, 20 and 21 of the Universal Declaration of Human Rights and, insofar as States parties are concerned, by articles 12, 18, 19, 21, 22, 25, 26 and 27 of the Covenant (category II);

(c) When the total or partial non-observance of the international norms relating to the right to a fair trial, established in the Universal Declaration of Human Rights and in the relevant international instruments accepted by the States concerned, is of such gravity as to give the deprivation of liberty an arbitrary character (category III);

(d) When asylum-seekers, immigrants or refugees are subjected to prolonged administrative custody without the possibility of administrative or judicial review or remedy (category IV);

(e) When the deprivation of liberty constitutes a violation of international law on the grounds of discrimination, based on birth, national, ethnic or social origin, language, religion, economic condition, political or other opinion, gender, sexual orientation, disability or any other status, that aims towards or can result in ignoring the equality of human beings (category V).

[1] A/HRC/36/38.

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1. Submissions

(a) Communication from the source

4. Ji Xiaolong is a citizen of China, born in 1976. His usual place of residence is in Pudong New District, Shanghai.

5. The source submits that Mr. Ji is a prominent human rights defender and an online commentator. Before he became involved in human rights advocacy, he founded and ran a business in Shanghai. Mr. Ji is also a Christian.

6. Chen Pinlin is a citizen of China, born in 1991. His usual place of residence is in Baoshan District, Shanghai.

7. Mr. Chen was the manager of the Shanghai Xinfei Media Company, and, like Mr. Ji, also an online commentator, who used the screenname "Plato".

(i) Arrest and detention of Mr. Ji

8. The source reports that in 2015, Mr. Ji was summoned by Shanghai police for "picking quarrels and provoking trouble" for writing articles online about democracy and constitutionalism and was given 15 days' administrative detention as a punishment, which is believed to be when he started to become even more involved in human rights advocacy.

9. Between 2018 and 2022, Mr. Ji spent three and a half years in prison on charges of "picking quarrels and provoking trouble" for his "toilet revolution" campaign. The source states that after the leader of China gave a speech in 2018 about improving public bathroom facilities, Mr. Ji wrote slogans criticizing the country's leadership and the Communist Party in various public sanitary facilities.

10. According to the source, Mr. Ji was detained in July 2018 and held under "residential surveillance in a designated location" – a form of de facto enforced disappearance. He was tried and convicted in January 2019. Mr. Ji served his sentence in Shanghai City's Baimaoling Prison, where the source submits that he faced torture and other forms of ill-treatment. Mr. Ji was released in February 2022, at the end of his sentence.

11. Most recently, Mr. Ji was arrested again on 31 August 2022 at his home in Pudong New District, Shanghai, at around 3.30 p.m., by officers from Meiyuan New Village Police Station which comes under the Pudong New District Branch of the Shanghai Public Security Bureau.

12. The arresting authorities did not show a warrant when arresting Mr. Ji. On 2 September 2022, his partner was told verbally that he had been criminally detained, and his parents, who live 130 km away in Jiangsu Province, received a written criminal detention notice on 4 September 2022. The authority issuing the arrest notice was the Pudong New District Branch of the Shanghai Public Security Bureau.

13. The reason given for his arrest was "picking quarrels and provoking trouble". Article 293 of the Criminal Law of China, which defines "picking quarrels and provoking trouble", prescribes a fixed-term imprisonment of up to five years for those who: (a) wilfully attack another person, where the circumstances are serious; (b) chase, intercept or curse another person, where the circumstances are serious; (c) forcibly take or demand, or wilfully damage or occupy public or private property, where the circumstances are serious; or (d) create a disturbance in a public place, causing serious disorder.

14. The source submits that Mr. Ji has been in continuous detention since 31 August 2022. He was formally arrested on 23 September 2022 and indicted on 17 March 2023. On 27 October 2023, Mr. Ji was convicted and sentenced to four years and six months in prison.

15. The source notes that the Shanghai Pudong New District Procuratorate ordered Mr. Ji's arrest and indictment and the Shanghai Pudong New District People's Court ordered his custodial sentence.

16. Mr. Ji appealed against his four-and-a-half-year prison sentence. The hearing was held on 17 March 2024 at Shanghai No. 1 Intermediate People's Court. During the hearing, Mr. Ji read out a statement, in which he alleged that the persecution against him had never stopped

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since the investigation began. He was reportedly not given glasses, books to read or dental treatment in the detention centre, and his basic rights were not protected. It was argued that his arrest was entirely due to his appeal to officials to protect the people's rights during the pandemic and his open letter to the Premier of China. The judge interrupted Mr. Ji's statement. On 17 April 2024, the Court rejected Mr. Ji's appeal.

17. The source report that Mr. Ji is currently detained in ward 8 at Shanghai New Prison in Shanghai. He had previously been detained in the Pudong New District Detention Centre, also located in Shanghai. The source notes that the authorities do not notify the families of the exact transfer date before an individual is moved to a prison. Mr. Ji's family was notified on 9 June 2024 that he had already arrived at Shanghai New Prison, and therefore it is believed that he was moved in early June 2024.

18. The source submits that on 14 November 2022, more than 115 supporters of Mr. Ji signed an open letter urging authorities to improve the situation for Mr. Ji in detention, including with regard to the overcrowding and the lack of dental treatment. The source regrets that their open letter did not result in an improvement in the conditions of his detention.

(ii) Arrest and detention of Mr. Chen

19. The source submits that on 28 November 2023, Mr. Chen was arrested at his home in Shanghai by officials from the Baoshan Branch of the Shanghai Municipal Public Security Bureau. At 11.50 p.m. on that day, the police came to Mr. Chen's residence and summoned him with a search warrant.

20. According to the source, the police had cautioned those present at the time of Mr. Chen's arrest not to speak publicly about his arrest, and further stated that they were only taking him away for questioning, and that talking about it would harm his case.

21. The reason for the arrest imputed by the authorities is, as in Mr. Ji's case, "picking quarrels and provoking trouble" – an offence set forth in article 293 of the Criminal Law.

22. The source submits that Mr. Chen has been in continuous detention since 28 November 2023, having been criminally detained on 29 November 2023. The detention was ordered by the Shanghai Baoshan District People's Procuratorate. Mr. Chen was formally arrested on 5 January 2024 and indicted on 3 April 2024. He is being held at the Baoshan District Detention Centre in Shanghai.

23. The source specifies that Mr. Chen has not yet been presented before a judge, as the trial has not yet commenced. Under the Criminal Procedure Law, the police may apply to the Procuratorate to approve the arrest warrant. The Procuratorate then files the indictment charge against the defendant. Judges are only involved in the trials.

24. The source submits that Mr. Chen was able to meet his lawyer for the first time one month after his apprehension, on 27 December 2023. He met with his current legal counsel on 8 February 2024. The first lawyer has since relocated abroad, and therefore is no longer representing Mr. Chen. Both the current and former lawyers were of Mr. Chen's choosing.

(iii) Legal analysis concerning Mr. Ji

25. The source submits that the detention of Mr. Ji is in violation of his right to peacefully exercise freedom of expression, and of rights guaranteed under articles 9, 10, 12, 18, 19, 21, 22 and 26 of the Covenant and articles 9, 10, 18, 19 and 20 of the Universal Declaration of Human Rights, and falls under categories II and III of the Working Group.

26. With regard to category II, the source notes that Mr. Ji has been convicted and sentenced to four years and six months in prison on charges that are tied to his exercise of his right to freedom of expression online.

27. During the spring of 2022, the authorities in Shanghai instituted a strict coronavirus disease (COVID-19) lockdown that lasted approximately two months and reportedly caused numerous limitations on economic and social rights. According to the source, these measures particularly affected vulnerable groups, such as migrant workers and those with pre-existing medical conditions.

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28. After Mr. Ji was released from prison, having completed a three-and-a-half-year sentence in February 2022, he began to speak out online about these lockdown measures. On 2 April 2022, Mr. Ji posted a "citizen's petition" on WeChat and Twitter (now X) that called on the Government to stop its restrictive pandemic measures. As a result, his WeChat account was blocked. On 4 April 2022, Mr. Ji published an open letter addressed to "All Public Officials" on his Twitter account, which had nearly 32,000 followers, and the next day he gave an interview to a foreign media outlet about his online criticism of the Government's pandemic measures.

29. On 30 April 2022, Mr. Ji was briefly detained at Meiyuan New Village Police Station on suspicion of "picking quarrels and provoking trouble" and was then released on bail the next day. On that occasion, the police confiscated his phone, ID card and passport. Mr. Ji continued to post comments online on his Twitter account between April 2022 and his detention in August 2022. Police officers and national security officers took him away briefly for questioning several times, including on 29 May 2022, 4 June 2022 and 23 August 2022.

30. On 29 August 2022, Mr. Ji posted an open letter on Twitter criticizing Shanghai's then Party Secretary, who became the Premier of China in March 2023, calling on him to step down and take accountability for the difficult humanitarian situation caused by the lockdown. The letter also reiterated his opposition to the top leadership of China and criticized it for its ambition to amend the Constitution. The letter stated that the police would not allow him to go back to his home town to take care of his elderly family members and obtain his social insurance card. Mr. Ji created his open letter as a non-fungible token so it could not be censored and would "always exist" online. The source recalls that it is in this context, two days after issuing the open letter, was Mr. Ji taken away from his home and criminally detained on charges of "picking quarrels and provoking trouble".

31. The source submits that the investigation focused on Mr. Ji's comments about the pandemic measures, which the police were treating as acts of spreading rumours, and that Mr. Ji was suspected of insulting national leaders.

32. On 17 March 2023, Mr. Ji was indicted by the Shanghai Pudong New District Procuratorate. The indictment stated that from April to August 2022, Mr. Ji had published or forwarded a large amount of false information that seriously damaged the country's image, on the overseas social media platform Twitter. At the time of the incident, Mr. Ji's Twitter account had 31,217 followers. On 30 April 2022, he was arrested by the police, and refused to confess to the facts of the crime. He had also published or forwarded a large amount of false information many times while he was out on bail awaiting trial in this case.

33. While the indictment did not mention the COVID-19 pandemic or specifics about what content posted by Mr. Ji was "false", it made clear that his online expression was the reason for his detention, notes the source.

34. The Shanghai Pudong New District People's Court commenced Mr. Ji's trial on 21 June 2023, and convicted him on 27 October 2023 on charges of "picking quarrels and provoking trouble", sentencing him to four years and six months in prison. The Court stated that Mr. Ji had "spread a large amount of false information on overseas social networks, instigated trouble, and confused the public", though again it did not cite any specific content. The Court also stated that Mr. Ji was a "repeat offender" and therefore "should be punished more severely according to law". The source notes in this regard that article 65 of the Criminal Law provides for further punitive measures for recidivists convicted within five years of completing their sentences.

35. Regarding category III, the source submits that the overall circumstances demonstrate multiple violations of Mr. Ji's right to a fair trial, guaranteed under articles 9 of the Covenant and the Universal Declaration of Human Rights.

36. In this regard, the source notes that Mr. Ji was subjected to procedural violations of his legal rights from the moment of detention to the court proceedings. Firstly, the source recalls that the police did not show a warrant when detaining Mr. Ji on 31 August 2022, in violation of article 85 of the Criminal Procedure Law. Furthermore, Mr. Ji's family did not receive the detention notice until 4 September 2022, even though the family must reportedly be notified within 24 hours under the same provision. The source notes that while there are

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exceptions to article 85, none applied in Mr. Ji's case (e.g. Mr. Ji was not held on national security or terrorist charges, notification would not obstruct the investigation, and it did not seem that it was impossible to notify the family as they were notified within a week).

37. The source further submits that the authorities also deprived Mr. Ji of access to his legal counsel for longer than 48 hours after such request was made, which is the limit set for a non-national security crime under article 39 of the Criminal Procedure Law.

38. Moreover, the source alleges that Mr. Ji is deprived of his liberty in inhumane conditions in the detention centre and that his complaints about medical treatment were ignored. Mr. Ji is reportedly suffering from untreated dental issues, the cells were very crowded, and his family's packages were rejected due to pandemic measures. He was only allowed to shower once a week.

39. The source reports that the room in the detention centre where Mr. Ji was held could only accommodate 25 people, but because there were many prisoners, it held more than 60 people. Inmates reportedly could not lie down when sleeping, nor could they flex their extremities. Mr. Ji's toothache had become very severe and his requests for treatment were being ignored.

40. On 26 April 2023, Mr. Ji's lawyer visited Mr. Ji in detention. The lawyer was reportedly not permitted to read Mr. Ji's case files, in violation of article 40 of the Criminal Procedure Law which allows lawyers to read, copy and reproduce case files after the case has been transferred to the Procuratorate for review. Mr. Ji had already been indicted on 17 March 2023 by the Procuratorate.

41. The trial of Mr. Ji took place on 21 June 2023 at the Shanghai Pudong New District Court. Mr. Ji was only told about the hearing in the morning on 21 June 2023. The source submits that this constitutes a violation of article 187 of the Criminal Procedure Law, which states that trial summons should be sent at least three days in advance. Mr. Ji reportedly raised concerns about the violation of his rights with the judge but was ignored.

42. The materials that Mr. Ji had prepared for his defence were reportedly confiscated by the detention centre and he was not allowed to bring them with him to the court. Mr. Ji's defence lawyer asked the court to postpone the hearing but the request was denied.

43. The source further submits that Mr. Ji's trial was closed to the public and that only two members of his family were allowed to attend the hearing. In addition, there were no witnesses present during the court proceedings.

44. The source submits that Mr. Ji was subjected to prolonged interrogation, was forced to sit in an iron chair for extended periods and was handcuffed. Furthermore, Mr. Ji's defence team had reportedly requested the footage of the interrogation, but the authorities did not provide it, stating that the interrogation records might not be used as evidence. Mr. Ji's appearance had drastically changed since before his detention: his hair had turned partially white, and he had become extremely thin.

45. Mr. Ji's defence lawyers requested the court to exclude unlawfully obtained evidence – the statements made by Mr. Ji – as they had reportedly been made under duress and following ill-treatment. The source reports that the prosecution and the court agreed to exclude these statements, and they were not presented during the trial.

46. The source notes that article 56 of the Criminal Procedure Law stipulates that "criminal suspects' or defendants' confessions gathered by the use of torture to extract confessions, or other illegal methods, or witness testimony or victim statements gathered by the use of illegal methods such as violence or threats, shall be excluded".

47. In early June 2024, Mr. Ji was transferred to Shanghai New Prison. Mr. Ji's family's application for a visit had still not been approved. Prison officials said that the public security officer in charge of the case needed to agree before issuing a visit notice. The source reports that Mr. Ji's right to family remains breached, in violation of article 48 of the Prison Law.

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(iv) Legal analysis concerning Mr. Chen

48. The source submits that the detention of Mr. Chen also falls under categories II and III of the Working Group.

49. In regard to category II, the source argues that Mr. Chen's detention is in violation of the right to peacefully exercise freedom of expression as guaranteed by the Covenant and under articles 18, 19 and 20 of the Universal Declaration of Human Rights. The source submits that the detention of Mr. Chen is due to his exercise of his right to freedom of expression online.

50. In this context, the source notes that on 26 November 2022 Mr. Chen attended and filmed a protest in Shanghai. The protest reportedly broke out in response to a fire in the city of Urumqi, Xinjiang Uighur Autonomous Region, two days earlier, during which several residents reportedly died after not being able to escape due to strict COVID-19 lockdown measures. Many Shanghai residents had gathered on Urumqi Middle Road in Shanghai. The protesters chanted slogans, including ones that called on the country's authorities to resign. Some of these protesters were detained. The source reports that the protest in Shanghai was one of the first in a wider protest movement across the country, which was later called the "White Paper Protests" or "White Paper Movement".

51. Mr. Chen reportedly compiled footage of this protest into a documentary called "Urumqi Middle Road", which he released on YouTube on 27 November 2023, near the one-year anniversary of the protests. He also posted the video on his accounts on X (formerly Twitter), Reddit and Telegram.

52. The source recalls that one day after posting this video online, on 28 November 2023, Mr. Chen was detained on suspicion of "picking quarrels and provoking trouble". Mr. Chen's family was unable to find a lawyer to take on his case until mid-December 2023, due to the sensitivity of the case. On 5 January 2024, Mr. Chen was formally arrested on charges of "picking quarrels and provoking trouble". On 18 February 2024, his case was transferred to the Procuratorate's office for prosecution. On 3 April 2024, he was indicted by the Shanghai Baoshan District Procuratorate.

53. The indictment states that the reason for Mr. Chen's arrest was that he had produced and published online a documentary video. It states that Mr. Chen used his mobile phone to shoot and save live video of the incident on Urumqi Middle Road in Shanghai on the evening of 26 November 2022. He later used it for the purposes of expressing dissatisfaction with the epidemic prevention and control policies, and of driving traffic to overseas social media platforms to seek economic benefits. The indictment further states that in September 2023, Mr. Chen began to produce the "Urumqi Middle Road Documentary on the First Anniversary of the White Paper Movement", using YouTube video software. It was completed on 27 November 2023. Mr. Chen promoted it through multiple overseas social media platforms, such as Twitter, Telegram and Reddit, causing the "documentary" to quickly spread on the overseas Internet, garnering up to 210,000 Twitter "likes". Much of the content of this documentary was false and Mr. Chen knowingly spread fabricated information, causing serious disruption to public order; and the documentary quoted insulting remarks about national leaders, damaging the country's image and seriously endangering national interests.

54. The source reiterates that the indictment clearly states that Mr. Chen is being prosecuted for posting a compilation of video clips online, some that he shot himself and others from reputable international media outlets. The source submits that to describe the footage as fabricated information is false. The footage included clips of protesters chanting slogans calling for the authorities to step down, which resulted in the accusation against Mr. Chen of insulting national leaders. During interrogations by the police, Mr. Chen stated that he himself did not chant these slogans. The source recalls that article 35 of the Constitution of the People's Republic of China protects the right to freedom of speech.

55. In relation to category III, the source submits that Mr. Chen has been denied the right to a fair trial.

56. In this regard, the source notes that Mr. Chen has not been brought before a judge and that only the public security bureau and prosecutors have reviewed the case details and

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evidence against him, in violation of international human rights standards. On 7 June 2024, the hearing was cancelled on the grounds that the court needed more time.

57. One of Mr. Chen's lawyers applied for bail, but it was rejected on the grounds that Mr. Chen might "form a gang to commit a crime" and in order to "prevent Mr. Chen from colluding with others to fabricate testimony".

58. The source submits that these arguments of the court do not conform with the case facts and appear to be designed to keep Mr. Chen in custody on the grounds permitted under article 82 of the Criminal Procedure Law.

59. The source points out that under international human rights standards, detention in custody should be a last resort under the principle of the presumption of innocence.

60. Furthermore, lawyers have reportedly not been allowed to copy the electronic data from Mr. Chen's mobile phone and his computer, which is being used as evidence against him. This data includes text, audio, and the promotional video that he made for the documentary. The source argues that the lack of access to this data hinders Mr. Chen's ability to mount a defence, as is guaranteed under international law. It also violates article 40 of the Criminal Procedure Law, in which it is stated that "from the day that the People's Procuratorate begins reviewing for prosecution, defence lawyers may read, copy and reproduce case file materials". Other national judicial procedures reportedly state that the copying of case files may be done by photocopying, photographing, scanning, electronic data copying and so on.

61. On 16 August 2024, Mr. Chen's lawyers filed a complaint with the Second Branch of the Shanghai People's Procuratorate over the decision of the judge at the Shanghai Baoshan District People's Court to deny the defence lawyers' right to review evidence.

62. Despite the ongoing denial of the defence lawyers' right to copy case evidence in order to mount a defence, the Shanghai Baoshan District People's Court arranged for a pretrial meeting to be held on 16 August 2024. The two defence lawyers attended it, even though it was held in violation of domestic procedural rules that the defence lawyers should have access to all case materials before the pretrial meeting.

63. The source further submits that since a defendant should be presumed innocent until proven guilty, the ongoing denial of communication to his family hinders Mr. Chen's rights.

64. It is submitted that the crime Mr. Ji was convicted of and indicted for, namely "picking quarrels and provoking trouble", stipulated under article 293 of the Criminal Law, has repeatedly been used by authorities since 2013 to punish forms of online expression protected under international law.

65. In this context, the source recalls that a judicial interpretation issued on 10 September 2013 by the Supreme People's Court and the Supreme People's Procuratorate stated that anyone who fabricates false information, knowingly spreads false information, or organizes or instigates others to spread false information online is to be punished under article 293 (4) of the Criminal Law. The source submits that this provision is so vague and overly broad that nearly any expression can fall under the definition of "creating a disturbance in a public place, causing serious disorder".

66. The source submits that this criminal provision has repeatedly been used to target human rights defenders, lawyers, writers and others for their online expression. It further recalls that the Working Group has in the past considered the crime of "picking quarrels and provoking trouble" and other charges to be "so vague and overly broad that it was impossible to invoke a legal basis justifying the deprivation of liberty".[2]

67. The source further notes that there have been growing calls in China for reform of the crime of "picking quarrels and provoking trouble". A survey published in 2023 and conducted by the Supreme People's Court in two provinces found that the charge was being overused.

[2] See, for example, opinion No. 62/2018, para. 58.

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(b) Response from the Government

68. On 25 November 2024, the Working Group transmitted the allegations from the source to the Government of China under its regular communications procedure. The Working Group requested the Government to provide it, by 27 January 2025, with detailed information about Mr. Ji and Mr. Chen and to clarify the legal provisions justifying their continued detention, as well as its compatibility with the obligations of China under international human rights law. Moreover, the Working Group called upon the Government of China to ensure their physical and mental integrity.

69. On 25 November 2024, the Government submitted its reply. The Government stated that Mr. Ji is a 48-year-old male. In order to vent his dissatisfaction, Mr. Ji repeatedly caused disturbances in public places in July 2018, disrupting social order and causing serious disorder in public places. His behaviour constituted the crime of picking quarrels and provoking trouble. On 14 January 2019, the People's Court in Pudong New District, Shanghai, sentenced Mr. Ji to three years and six months in prison for the crime of picking quarrels and provoking trouble. After the sentencing, Mr. Li filed an appeal. The Shanghai First Intermediate People's Court, after hearing the case in accordance with the law, rejected the appeal and upheld the original ruling, on 11 April 2019.

70. After Mr. Ji was released from prison, he fabricated a large amount of false information and spread it on information networks from April to August 2022, seriously disrupting public order. His actions constituted the crime of picking quarrels and provoking trouble. As a repeat offender, he was subject to severe penalties, in accordance with the law. On 14 October 2023, the People's Court in Pudong New District, Shanghai, sentenced Mr. Ji to four years and six months in prison for the crime of picking quarrels and provoking trouble. After the sentencing, Mr. Ji filed an appeal. The Shanghai First Intermediate People's Court, after hearing the case in accordance with the law, rejected the appeal and upheld the original ruling, on 17 April 2024. Mr. Ji is currently serving time in prison.

71. Mr. Chen is a 33-year-old male. In November 2023, he was placed in criminal detention by the Shanghai public security bodies, in accordance with the law, on suspicion of picking quarrels and provoking trouble. On 3 April 2024, he was prosecuted by the Baoshan District People's Procuratorate in Shanghai. The case was postponed because the accused changed defence counsel. The Baoshan District People's Court in Shanghai will set a date to hear this case.

72. China is a country ruled by law, and the judicial bodies have protected the legitimate rights of Mr. Ji and Mr. Chen, in accordance with the law. The country's prisons have always enforced the law adhering to strict, fair and civilized standards, guaranteed the rights of prisoners to life, health, visits and correspondence in accordance with the law and accepted the legal supervision of the people's procuratorates.

(c) Further comments from the source

73. The Government's reply was sent to the source for further comments on 26 November 2024, which the source submitted on 9 December 2024. In further comments, regarding Mr. Ji, the source noted that his convictions in 2019 and 2023 both stem from his exercise of the right to freedom of expression. His peaceful actions – writing slogans critical of the country's leadership in public restrooms and posting online commentaries urging the Government to lift restrictive COVID-19 measures – fall squarely within his rights. These activities did not "cause disturbances in public places" or "disrupt social order", as alleged in the Government's response.

74. The Government accused Mr. Ji of spreading "false information", without specifying which content was deemed "false". Instead, it explicitly cited his online expression as the basis for his conviction. Neither Mr. Ji's indictment nor the Government's response provided substantial or credible evidence to justify the charge of "picking quarrels and provoking trouble".

75. At the appeal hearing on 17 March 2024, Mr. Ji attempted to read a statement disclosing the mistreatment he had endured in prison, but the judge interrupted him. A month later, the court upheld his conviction.

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76. The source noted further abuses. When Mr. Ji protested against his mistreatment in prison, officials retaliated with solitary confinement. His dental issues remain untreated, forcing him to swallow food without chewing to avoid worsening his pain. The prison has repeatedly denied Mr. Ji access to family visits, contradicting claims made in the Government's response that the prisons have always guaranteed the rights of prisoners to life, health, visits and correspondence. Neither Mr. Ji's family nor his lawyer have received responses to their letters.

77. In regard to Mr. Chen, the source recalls that he has spent over a year in pretrial detention. His indictment clearly indicates that Mr. Chen is being prosecuted for posting a compilation of video clips online, a peaceful act within his rights to free expression that does not constitute the charge of "picking quarrels and provoking trouble" as the Government response alleged.

78. The Government claims that Mr. Chen's case is being delayed due to a change of defence lawyer. The source notes, however, that the delay in Mr. Chen's case has, for a long time, exceeded the period of three months prescribed by national law.

79. In addition, the source notes that the response failed to mention two critical procedural issues: a pretrial hearing scheduled for 7 June 2024 was cancelled, with the court claiming it needed more time, and another pretrial meeting on 16 August 2024 was held in violation of domestic procedural rules, as the defence lawyers' right to copy case files was obstructed. Mr. Chen's lawyers filed a complaint against the decision to deny the right of the defence lawyers to review evidence. The court's actions directly contradict the Government's claims of protecting Mr. Chen's legitimate rights to a fair trial. To date, Mr. Chen's lawyers do not have access to all the evidence listed in his indictment.

80. Furthermore, the source notes that the prison only allowed Mr. Chen outdoor time once a month, and held him in an overcrowded cell forcing detainees to sleep sideways. Under article 25 of the country's Detention Centre Regulations, detainees should have the necessary sleep time and one to two hours of outdoor activity a day. Furthermore, according to article 27 of the Implementation Measures of the Detention Centre Regulations, the average living space per detainee in a detention cell must not be less than two square metres. Mr. Chen's conditions in detention illustrate the opposite of the Government's claim that the country's prisons have always enforced the law, adhering to strict, fair and civilized standards. His access to outdoor time improved after his lawyer filed a complaint with the Procuratorate.

(d) Additional information from the source

81. On 7 January 2025, the source informed the Working Group that on the day before, 6 January 2025, a court in Shanghai had tried Mr. Chen and had sentenced him to three years and six months in prison for "picking quarrels and provoking trouble".

2. Discussion

82. The Working Group thanks the source and the Government for their submissions. In determining whether the deprivation of liberty of Mr. Ji and Mr. Chen is arbitrary, the Working Group has regard to the principles established in its jurisprudence to deal with evidentiary issues. If the source has established a prima facie case for breach of international law constituting arbitrary detention, the burden of proof should be understood to rest upon the Government if it wishes to refute the allegations. Mere assertions by the Government that lawful procedures have been followed are not sufficient to rebut the source's allegations.[3]

83. The source has argued that the detention of Mr. Ji and Mr. Chen is arbitrary and falls under categories II and III. The Working Group will proceed to examine these in turn.

[3] A/HRC/19/57, para. 68.

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(a) Category I

84. Although the source has not explicitly framed its submission under category I, the Working Group may examine issues ex officio when the information provided suggests a deprivation of liberty that lacks legal basis.

85. The Working Group notes that the source alleges that Mr. Ji was arrested on 31 August 2022 by officers from the Meiyuan New Village Police Station, which comes under the Pudong New District Branch of the Shanghai Public Security Bureau. When detaining Mr. Ji, the police officers reportedly did not produce a warrant, in violation of article 83 of the Criminal Procedure Law which stipulates that public security bureau officers must produce an arrest warrant when detaining an individual.

86. The Working Group recalls that anyone who is arrested is to be informed, at the time of arrest, of the reasons for the arrest and is to be promptly informed of any charges. The Working Group has previously stated that in order for a deprivation of liberty to have a legal basis, it is not sufficient that there is a law which may authorize the arrest. The authorities must invoke that legal basis and apply it to the circumstances of the case.[4] This is typically done through an arrest warrant or arrest order (or equivalent document).[5] The right to be presented with an arrest warrant is inherent to the right to liberty and security of person and to the prohibition of arbitrary detention, under articles 3 and 9 of the Universal Declaration of Human Rights as well as principles 2, 4 and 10 of the Body of Principles for the Protection of All Persons under Any Form of Detention or Imprisonment.[6]

87. In the absence of any explanation from the Government in its reply to contradict these allegations, the Working Group finds that Mr. Ji's arrest on 31 August 2022 was conducted without legal basis, in violation of articles 3 and 9 of the Universal Declaration of Human Rights.

88. Regarding Mr. Chen, the Working Group observes that similar concerns arise. The source reports that Mr. Chen was arrested at his home in Shanghai on 28 November 2023 by officials from the Baoshan Branch of the Shanghai Municipal Public Security Bureau and was placed in criminal detention the following day. In the absence of specific information showing that Mr. Chen was presented with a proper arrest warrant, the Working Group concludes that his arrest also lacked a proper legal basis, in violation of articles 3 and 9 of the Universal Declaration of Human Rights.

89. Furthermore, the Working Group observes that both Mr. Ji and Mr. Chen have been charged under article 293 of the Criminal Law of China with "picking quarrels and provoking trouble". The Working Group has previously noted that this provision does not define with sufficient precision what conduct amounts to "picking quarrels and provoking trouble". As noted in its previous opinions, the Working Group considers that this provision is vague and imprecise, allowing for the criminalization of conduct protected under international human rights law.[7] The determination of whether an offence has been committed appears to be left entirely to the discretion of the authorities. The Working Group again emphasizes that charges involving vague and imprecise offences jeopardize the ability of individuals to exercise their fundamental rights and are likely to result in arbitrary deprivation of liberty.

90. The Working Group thus observes that both detainees were arrested, detained and charged under vague provisions of the Criminal Law that fail to meet the principle of legality. Considering the above, the Working Group concludes that the detention of Mr. Ji and Mr. Chen lacks legal basis and is arbitrary, falling under category I.

[4] Opinions No. 9/2019, para. 29; No. 46/2019, para. 51; and No. 59/2019, para. 46.

[5] Opinions No. 88/2017, para. 27; No. 3/2018, para. 43; and No. 30/2018, para. 39. In cases of arrests made in flagrante delicto, the opportunity to obtain a warrant will typically not be available.

[6] The Working Group has maintained from its early years that the practice of arresting persons without a warrant renders their detention arbitrary. See decisions No. 1/1993, paras. 6 and 7; No. 3/1993, paras. 6 and 7; No. 4/1993, para. 6; No. 5/1993, paras. 6, 8 and 9; No. 27/1993, para. 6; No. 30/1993, paras. 14 and 17 (a); No. 36/1993, para. 8; No. 43/1993, para. 6; and No. 44/1993, paras. 6 and 7. For more recent jurisprudence, see opinions No. 66/2019, para. 61; No. 6/2020, para. 40; No. 11/2020, para. 38; No. 13/2020, para. 47; No. 14/2020, para. 50; and No. 89/2020.

[7] See opinions Nos. 11/2020, 82/2020 and 25/2021.

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(b) Category II

91. The source submits that the detention of Mr. Ji and Mr. Chen constitutes a violation of their rights to freedom of expression and assembly, including those guaranteed under articles 18, 19 and 20 of the Universal Declaration of Human Rights.

92. In the case of Mr. Ji, the Working Group notes that, according to the source, he was detained primarily for his online criticism of the Government's COVID-19 pandemic measures and for publishing open letters criticizing government officials. On 2 April 2022, Mr. Ji posted a "citizen's petition" on WeChat and Twitter (now X), calling on the Government to stop its restrictive pandemic measures. On 29 August 2022, Mr. Ji posted an open letter on Twitter criticizing Shanghai's then Party Secretary, who later became the Premier of China, calling on him to step down and take accountability for the difficult humanitarian situation caused by the lockdown.

93. The Working Group notes that these actions fall within the legitimate exercise of the right to freedom of expression, as protected under article 19 of the Universal Declaration of Human Rights. The Government has not demonstrated that Mr. Ji's expression posed any threat to national security, public order, public health or morals, or the rights and freedoms of others that would justify restricting his rights.

94. As regards Mr. Chen, the Working Group notes that, according to the source, he was detained on 28 November 2023, just one day after he posted online a documentary video about the "White Paper Protests" that had occurred in Shanghai on 26 November 2022. The indictment against Mr. Chen specifically mentions his production and publication of this documentary, which suggests that his detention is directly linked to his exercise of the right to freedom of expression.

95. The Working Group notes that the right to freedom of expression includes the freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of one's choice. The peaceful documentation and dissemination of information about protests falls within the protection of the right to freedom of expression.

96. In the absence of a compelling explanation from the Government why restrictions on their freedom of expression are justified, the Working Group concludes that Mr. Ji and Mr. Chen have been deprived of their liberty for the peaceful exercise of their rights to freedom of expression, in violation of article 19 of the Universal Declaration of Human Rights. Their detention is therefore arbitrary, falling under category II of the Working Group.

(c) Category III

97. The source argues that the detention of Mr. Ji and Mr. Chen also falls under category III, due to the non-observance of international norms relating to the right to a fair trial. Given its finding that the deprivation of liberty of Mr. Ji and Mr. Chen is arbitrary under category II, the Working Group emphasizes that no trial should have taken place. Nevertheless, since the trials have taken place, the Working Group will examine the source's allegations.

98. In the case of Mr. Ji, the source reports that his lawyers experienced significant obstacles in representing him effectively. The source alleges that authorities deprived Mr. Ji of access to his legal counsel for longer than 48 hours after his request was made, which is the limit set for a non-national security crime under article 39 of the Criminal Procedure Law. In addition, during a visit on 26 April 2023, Mr. Ji's lawyer was reportedly not permitted to read his case files, in violation of article 40 of the Criminal Procedure Law.

99. Regarding Mr. Chen, the source indicates that he was able to meet with a lawyer for the first time one month after his apprehension, on 27 December 2023, and with his current legal counsel on 8 February 2024. Moreover, the source submits that Mr. Chen's lawyers have not been allowed to copy the electronic data from his mobile phone and computer, which is being used as evidence against him. This data includes text, audio, and promotional video materials, relevant to his defence. The Government did not rebut these submissions in its reply.

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100. The Working Group recalls that all persons deprived of their liberty have the right to legal assistance by counsel of their choice at any time during their detention, including immediately after their apprehension, and that such access must be provided without delay. This right is essential for ensuring that the principle of equality of arms is observed in criminal proceedings. The Government has failed to explain the restrictions placed on both Mr. Ji's and Mr. Chen's access to legal assistance. The Working Group thus finds a violation of articles 10 and 11 of the Universal Declaration of Human Rights.

101. The Working Group further observes that Mr. Ji's trial on 21 June 2023 was reportedly closed to the public, with only two members of his family allowed to attend. Article 10 of the Universal Declaration of Human Rights guarantees that "everyone is entitled in full equality to a fair and public hearing by an independent and impartial tribunal". While the right to a public hearing is not absolute, any restrictions must be strictly justified by considerations of morals, public order or national security in a democratic society. In the absence of such justification from the Government, the Working Group finds that the restriction on the public nature of Mr. Ji's trial constitutes a violation of his right to a fair trial.

102. The source further alleges that during the trial, Mr. Ji was kept in handcuffs and forced to sit in a cage behind metal bars, despite making numerous requests for the handcuffs to be removed. Such presentation of the accused in court is incompatible with the presumption of innocence guaranteed under article 11 (1) of the Universal Declaration of Human Rights, as it portrays the defendant as dangerous and likely guilty before any determination is made by the court.

103. The Working Group notes with concern the source's allegation, not refuted by the Government, that the materials Mr. Ji had prepared for his defence were confiscated by the detention centre, and he was not allowed to bring them to court. Additionally, Mr. Ji was reportedly only told about his hearing on the morning of the trial day, 21 June 2023, contrary to national law requiring that trial summons be sent at least three days in advance.

104. Regarding Mr. Chen, the source notes that the authorities have repeatedly obstructed access to case files by his legal defence team. Furthermore, his lawyers were not allowed to copy electronic evidence that forms a critical part of the case against him, severely hampering his ability to prepare an adequate defence.

105. These restrictions, not addressed by the Government in its reply, significantly impair the ability of both individuals to prepare and present their defence, in violation of article 11 of the Universal Declaration of Human Rights.

106. The Working Group concludes that the above-mentioned violations of the right to a fair trial are of such gravity as to give the deprivation of liberty of Mr. Ji and Mr. Chen an arbitrary character. Their detention therefore falls under category III of the Working Group.

(d) Category V

107. Although category V was not explicitly raised by the source, the Working Group has found under category II that the detention of Mr. Ji and Mr. Chen resulted from their legitimate exercise of freedom of expression. When a detention results from the active exercise of civil and political rights, there is a strong presumption that the detention also constitutes a violation of international law on the grounds of discrimination based on political or other views. Accordingly, the Working Group will examine this category ex officio.

108. The Working Group notes that both Mr. Ji and Mr. Chen appear to have been targeted due to their political opinions, particularly their criticism of government policies and officials. In the case of Mr. Ji, his detention followed his criticism of the Government's COVID-19 pandemic measures and his calls for officials to be held accountable. For Mr. Chen, his detention came immediately after he published a documentary about the "White Paper Protests", which were demonstrations against the Government's COVID-19 policies.

109. The authorities have, therefore, displayed an attitude towards them that can only be characterized as discriminatory. In the absence of any explanation from the Government that would refute this conclusion, and in the particular circumstances of the present case, the Working Group finds that their detention violates articles 2 and 7 of the Universal Declaration

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of Human Rights on the grounds of discrimination based on political or other opinion and is arbitrary according to category V.

3. Disposition

110. In the light of the foregoing, the Working Group renders the following opinion:

> The deprivation of liberty of Ji Xiaolong and Chen Pinlin, being in contravention of articles 2, 3, 7, 9, 11 and 19 of the Universal Declaration of Human Rights, is arbitrary and falls within categories I, II, III and V.

111. The Working Group requests the Government of China to take the steps necessary to remedy the situation of Mr. Ji and Mr. Chen without delay and bring it into conformity with the relevant international norms, including those set out in the Universal Declaration of Human Rights.

112. The Working Group considers that, taking into account all the circumstances of the case, the appropriate remedy would be to release Mr. Ji and Mr. Chen immediately and accord them an enforceable right to compensation and other reparations, in accordance with international law.

113. The Working Group urges the Government to ensure a full and independent investigation of the circumstances surrounding the arbitrary deprivation of liberty of Mr. Ji and Mr. Chen and to take appropriate measures against those responsible for the violation of their rights.

114. The Working Group requests the Government to disseminate the present opinion through all available means and as widely as possible.

4. Follow-up procedure

115. In accordance with paragraph 20 of its methods of work, the Working Group requests the source and the Government to provide it with information on action taken in follow-up to the recommendations made in the present opinion, including:

(a) Whether Mr. Ji and Mr. Chen have been released and, if so, on what dates;

(b) Whether compensation or other reparations have been made to Mr. Ji and Mr. Chen;

(c) Whether an investigation has been conducted into the violation of the rights of Mr. Ji and Mr. Chen and, if so, the outcome of the investigation;

(d) Whether any legislative amendments or changes in practice have been made to harmonize the laws and practices of China with its international obligations in line with the present opinion;

(e) Whether any other action has been taken to implement the present opinion.

116. The Government is invited to inform the Working Group of any difficulties it may have encountered in implementing the recommendations made in the present opinion and whether further technical assistance is required, for example through a visit by the Working Group.

117. The Working Group requests the source and the Government to provide the above-mentioned information within six months of the date of transmission of the present opinion. However, the Working Group reserves the right to take its own action in follow-up to the opinion if new concerns in relation to the case are brought to its attention. Such action would enable the Working Group to inform the Human Rights Council of progress made in implementing its recommendations, as well as of any failure to take action.

118. The Working Group recalls that the Human Rights Council has encouraged all States to cooperate with the Working Group and has requested them to take account of its views

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and, where necessary, to take appropriate steps to remedy the situation of persons arbitrarily deprived of their liberty, and to inform the Working Group of the steps they have taken.[8]

[*Adopted on 2 April 2025*]

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[8] Human Rights Council resolution 51/8, paras. 6 and 9.